

Division of Family Support
OPERATION MANUAL
Volume IIA

[OMTL-574](#)

Supplemental Nutrition Assistance Program (SNAP) Work Requirements
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MS 1050

FREQUENTLY USED TERMS

(1)

Several terms are frequently used in connection with SNAP work registration and ETP. These items are detailed here and are used without further explanation throughout this volume.

1. ABAWD Able-Bodied Adults Without Dependents
2. DCBS Department for Community Based Services
3. E&T Employment and Training Program
4. GED General Education Development
5. IPV Intentional Program Violation
6. KTAP Kentucky Transitional Assistance Program
7. KWP Kentucky Works Program
8. KYIMS Kentucky Information Management System
9. NAB Nutrition Assistance Branch
10. OTIS Online Tracking Information System
11. SSI Supplemental Security Income
12. SSA Social Security Administration
13. TAA Trade Adjustment Assistance
14. UIB Unemployment Insurance Benefits
15. VES Vocational Education Skills
16. WEP Work Experience Program
- [17. ERT Employment Readiness Training**
- 18. IET Integrated Education Training]**
19. WIOA Workforce Innovation and Opportunity Act

MS 1100

WORK REGISTRATION OVERVIEW

(1)

- A. **【Work registration is a technical eligibility factor for participation in the Supplemental Nutrition Assistance Program (SNAP). Every able-bodied household member age 16-64, must agree to work register unless otherwise exempt.】**

- B. Nonexempt members must agree to work register every 12 months at application, recertification, or member add.

Ineligibility of the member or correct discontinuance of the member's case for any reason does not void the member's work registration, as the member is considered work registered, along with all other household members that are required to work register, when the SNAP application is signed.

- C. Excluded household members are required to register for work unless otherwise exempt. This includes ineligible immigrants, members who are serving an IPV disqualification, or individuals removed from the case for failure to provide a verified Social Security number.

MS 1550 WORK REGISTRATION PROCEDURES (1)

- A. At initial application, reapplication, recertification, member add, or case change, determine which household members are required to agree to register for work. Members are required to agree to register every 12 months. Active members must not be registered more than once in a 12-month period. By signing the SNAP application, the household agrees that all members without an exemption will agree to work registration.
- B. If the household's benefits were incorrectly terminated and a reinstatement is completed through the case change or application process, DO NOT change the ORIGINAL work registration date. This includes members who were incorrectly discontinued and were reinstated per instructions from the Division of Family Support.

MS 1555 SNAP WORK REGISTRATION FOR KTAP APPLICANTS (1)

【KTAP recipients are required to agree to work register.

However, if an individual who is applying for SNAP has a pending KTAP application, the following rules apply:

- A. If the mandatory work registrant has a KTAP application pending:
 - 1. Answer "Yes" to indicate that the member agrees to work register; and
 - 2. The work registration status will be Agrees/Pending.

Once this is completed, the member is considered as meeting the work requirement for KTAP and therefore exempt from registering again for SNAP.

Explain to the household that if the KTAP application is not approved and a member is not otherwise exempt, the member will have to agree to register for work to be eligible for SNAP.

- B. When the KTAP application is denied prior to the disposal of the SNAP action, the member will be required to agree to register for work.
- C. When the SNAP application is disposed prior to the KTAP application, process a case change to update the SNAP member's information.】

MS 1650 WORK REGISTRATION EXEMPTIONS (1)

Exempt the following household members from work registration. If the exemption is questionable, require verification.

A. Persons age 17 or under, unless:

1. The 16 or 17-year-old is the head of household and does not meet an exemption listed in Section I of this manual section below.

If the child's 16th birthday is on the first day of the new certification period, do not delay work registration. Work register the member during the last month of the current certification period with an effective date of the first month of the new certification period. If the child's 16th birthday is on ANY OTHER day of the month, wait until the next scheduled recertification to complete work registration.

B. [Persons who are 65 years of age or older.]

C. Persons who are physically or mentally unable to work.

1. If a mental or physical disability is claimed and the disability is NOT evident, verification is required. Answer "YES" to the gatepost question, which asks if anyone is incapacitated or unable to work. Request verification if not provided. Document the case record concerning the verification used to support the member's determination of disability. Appropriate verification consists of, but is not limited to:

- a. Receipt of temporary or permanent disability benefits, including SSI or SSA; or
- b. A statement or form FS-704, Statement of Disability or Incapacity, from a physician, a licensed certified psychologist, a chiropractor who is licensed by the Kentucky State Board of Chiropractic Examiners, a social worker, or a certified, licensed health professional commenting on a disability within the realm of their expertise.

Disability must be re-verified at recertification. If form FS-704 is received and lists the recovery date as "indefinite", the worker must enter the recovery date as the month that recertification is due. For example, if the recertification due date is in May 2024, the recovery date should be entered as 5/31/2024. **DO NOT** enter 12/31/9999 as the expected recovery date when Form FS-704 lists the recovery date as indefinite.

2. If a person claims to be physically or mentally unable to work and it is obvious to the worker, the worker may make a field determination. The worker may use their discretion when determining an obvious disability. Disabilities do not have to be seen to be obvious.

[Example 1: A member has a broken leg.

Example 2: A member has a medical device that would inhibit their ability to work.

Example 3: It is obvious to the worker that a member is unable to work due to a diminished mental capacity.】

When a field determination of disability is made, select “Worker Observation” as the verification source.

3. A chronically homeless person may be considered physically or mentally unable to work if:
 - a. The person has been continuously homeless for a year or more; and
 - b. It is obvious to the worker that the person is unable to work.
- D. All adult Kentucky Transitional Assistance Payment (KTAP) recipients. These members are required to participate in the Kentucky Works Program (KWP) unless otherwise exempt. However, members who apply for SNAP and KTAP simultaneously must agree to work register to meet the SNAP requirements. This exemption cannot be used to cure a disqualification imposed because the member failed to comply with KWP or Unemployment Insurance Benefit (UIB) work requirements.
- E. A parent or other household member who is **ACTUALLY** responsible for the care of:
 1. 【A dependent child UNDER 6. If the child's 6th birthday falls within a certification period, the individual responsible for the care of the child is registered for work at the next scheduled recertification; or】
 2. An incapacitated person. The case record must contain verification from a certified medical provider that the incapacitated individual requires care from the person seeking the exemption.

Item E. 1 or 2 applies even if the child or incapacitated person is NOT a household member in the SNAP case.

[Example: John lives with his Aunt Susie and her 4-year-old daughter, Kelly. They request and are eligible for separate household status. John babysits Kelly while Aunt Susie works full-time. John is exempt from work registration due to the care of a child under age 6.】

NOTE: When moving a child out of a SNAP Eligibility Determination Group (EDG), workers must first **END DATE** the primary caregiver status of the member who is assigned to that child, before changing the Household Status screen to “out of household”. If the record is not end-dated prior to removal of the child, the system will continue to show the member as being exempt from work registration as it considers the member as providing care for a child who is not a member in the SNAP EDG.

- F. Persons in receipt of UIB or who have applied for but have not yet begun to receive UIB. If the member appeals a UIB denial, they remain exempt from work registration during the appeal process.
- G. Persons in receipt of VA based on 100% disability.
- H. A regular participant in a substance use disorder (SUD) treatment and rehabilitation program. Regular participation is both determined and verified by the center. This exemption also applies to regular participation in Alcoholics Anonymous or Narcotics Anonymous.
- I. Persons employed or self-employed, including in-kind income, who are working a minimum of 30 hours per week or have earnings at least equal to the Federal minimum wage multiplied by 30 hours. This includes migrant and seasonal farmworkers under contract or similar agreement with an employer or crew chief to begin employment within 30 days.
- J. Persons enrolled at least half-time in any recognized school (including high school up until age 21), training program, or institution of higher education, if the person meets the conditions of being an eligible student. This includes eligible aliens who are participating in training programs approved, funded, or authorized by the Office of Refugee Resettlement. This does not include members enrolled in a GED, Adult Basic Education, Literacy Program, Vocational Education program, or institution of higher education through placement by E&T.

A student remains exempt during normal periods of class attendance, vacation, and recess unless the student graduates, is suspended, expelled, drops out, or does not intend to register for the next normal school term, excluding summer school.

Persons who are not enrolled at least half-time or who experience a break in their enrollment status due to graduation, expulsion, suspension, who drop out, or otherwise do not intend to return to school are NOT considered students for the purpose of qualifying for this exemption.

- K. Household members who are applying jointly for SSI and SNAP through the SSA office have requirements for work registration waived until:
 - 1. They are determined eligible for SSI and thereby become exempt from work registration; or
 - 2. They are determined ineligible for SSI, and, where appropriate, a determination of their work registration status occurs at the next certification action.
- L. Work registration exemption at application/recertification and member add is determined by the system based on how applicable questions are answered. It is very important that each member's information is carefully reviewed at each case action that may affect work registration status.

- M. Persons who are deemed not eligible to receive a Social Security Number (SSN). This includes aliens who are directed to apply for an SSN to assist in determining eligibility for assistance.
- N. **[An Indian, Urban Indian, or California Indian (as defined in section 4 of the Indian Healthcare Improvement Act).]**

MS 1700

LOSS OF EXEMPTION

(1)

When a work registration exemption no longer exists, do the following:

- A. Individuals who lose work registration exemption status due to any change in circumstances are required to agree to register for employment at the time the change is reported.
- B. **【**Recipients who lose their work registration exemption may also be subject to additional work requirements if they are an Able Bodied Adult Without Dependents (ABAWD). Review each member's information screens when work registering the member to ensure their ABAWD status is correctly determined based on system entries.**】**
- C. When a change is reported that results in the loss of a SNAP work registration exemption, the member must be work registered according to the following:
 1. If the change in work registration status is reported in person, or by phone, by either the household member required to agree to register, or by another member who is willing to agree to register the individual, explain that the member must only agree to work register and no further action is required.
 2. If a household reports the loss of a work registration exemption and the member required to agree to register is unavailable, and another member is unwilling to agree to register the individual:
 - a. Answer "declines" that the member does not agree to register.
 - b. The member will be disqualified, and a notice will be generated to inform the member of the disqualification. If the member registers for work within the 10-day timely notice period, adverse action is avoided.

MS 1705 LOSS OF EXEMPTION FOR 18-YEAR-OLDS (1)

[When a child in a SNAP case turns 18 years old during the certification period, the member must be work registered as part of the next scheduled recertification process, unless the member qualifies for another exemption.]

MS 1750 CHANGE IN EXEMPTION (1)

- A. Work registered members who are required to comply with work requirements are not subject to those requirements if the member becomes EXEMPT from work registration, unless K-TAP or UIB noncompliance is involved. Refer to MS 4500.
- B. Members whose change in age exempts them from work registration requirements are exempted at the household's next recertification, unless another change is reported, which is subject to reporting requirements.

MS 2000 ABLE BODIED ADULTS WITHOUT DEPENDENTS
(ABAWD) OVERVIEW (1)

The following provides a general overview of the work requirements for ABAWDs.

- A. [ABAWDs are able-bodied individuals between 18-64 years of age who do not have a person under age 14 as a member of their SNAP household. For this policy, a dependent child is defined as a person under age 14 who is a member of the SNAP household. ABAWDs are exempt from these provisions when they reach age 65.]
- B. ABAWDs may receive benefits for 3 months, consecutive or otherwise, within a 36-month period, if not in compliance with work requirements. ABAWD provisions became effective 12/1/96.
- C. If the member has been screened as a good fit for the Employment and Training Program (E&T) and says yes to participate in E&T, upon disposition, the system will send a referral to the local E&T Provider. The E&T Provider will reach out by mail, phone, text, or email to schedule an appointment and complete the E&T assessment. Appointments are scheduled for 5-10 business days from the disposition date. The demographic information for each individual is saved on the E&T case management system regardless of whether the member chooses to participate in E&T or not, in case the member changes their mind and contacts the E&T Provider or an E&T Partner to participate later on.

If the individual states that they anticipate incurring expenses, the E&T provider will issue the initial transportation payment of up to \$25. The payment will be issued once the E&T assessment is completed and the individual agrees to participate in the E&T program.

For expedited approvals with a two-month certification period, the individual must begin meeting the 80-hour work requirement in the second month of the certification period. For example, if an application is approved for January and February, the individual must meet the 80-hour work requirement in February.

- D. The system tracks the compliant and non-compliant (BA) months for participants who must meet these requirements. A compliant month is a month in which an ABAWD is either exempt as specified in MS 2105 or by complying with the requirements as specified in MS 2100. A BA month is a month in which an ABAWD is not exempt and is not meeting the requirements. In addition, an ABAWD can receive bonus months after accumulating 3 BA months as specified in MS 2750. Pro-rated months DO NOT count as a BA month.

MS 2100 ABAWD WORK REQUIREMENTS (1)

- A. **[Able Bodied Adults Without Dependents (ABAWD) must comply with specific eligibility criteria and provide verification if required to maintain eligibility for SNAP benefits. To be eligible, the ABAWD must:]**
1. Be exempt from ABAWD work requirements due to residing in an ABAWD waiver county;
 2. **[Participate in the Employment and Training (E&T) program. The E&T program provides participants the opportunity to find employment, training, or education in order to increase participants' chances of finding employment. Required verification of participation is tracked and verified by an E&T Provider. For E&T information, refer to MS 3100;]**
 3. Be working 80 hours per month. The employment can be working for money (this includes self-employment), in-kind work, or unpaid (volunteer) work, or any combination of these. This would also include when someone works for rent instead of paying. The hours of in-kind/unpaid income must be verified at each recertification for the prior months in between cert periods.
- Example:** An individual comes in on May 1, 2023, for recertification. The worker must verify the hours of in-kind work for every month since the individual was last certified.
- Individuals on strike or on temporary layoff are not considered employed. ABAWDs who are on sick leave from a job, whether paid or unpaid, are in compliance as long as they continue to be considered an employee of the business; or
4. **[Participate at least 20 hours per week in a work program funded by the Workforce Innovation and Opportunity Act (WIOA) or a Transitional Assistance Agreement (TAA). Households are required to report within 10 days, any change in work hours that brings them below the required 20 hours per week. Verification of participation is required.]**
- B. Non-exempt ABAWDs who fail to comply with the above requirements accumulate non-compliant months. An ABAWD can accumulate only 3 non-compliant months in a 36-month period before becoming ineligible for benefits.
- C. ABAWDs are assigned compliant months if exempt from ABAWD provisions or in compliance with ABAWD requirements.
- D. The following procedures apply to system questions related to determining ABAWD eligibility.
1. Verification of ABAWD eligibility questions is optional. If not verified, the case does not deny or discontinue solely for lack of this verification. At the end of the timely processing timeframe, the case will process without this verification, and any month for which ABAWD eligibility is not established is considered a noncompliant month.

2. Hours will be systematically converted in order to determine if the member is working 80 hours or more/month.
 3. When self-employment, farm, or earned income is end-dated, review the case for ABAWD bonus period eligibility.
- E. Ineligible aliens are not required to cooperate with ABAWD activities.
- F. Eligible aliens who are **NOT** eligible to receive a social security number are not required to cooperate with ABAWD activities.
- G. **[In all counties, any member between ages 16-64 may participate in the E&T program. E&T participants who are not subject to the time limit do not receive non-compliant months for failure to participate.]**
- H. Individuals who are age 16-17 years should be Head of Households in order to participate.

MS 2105

ABAWD EXEMPTIONS

(1)

This policy only applies to ABAWD determination and exemptions and DOES NOT apply to normal work registration requirements. See MS 1650 for work registration exemptions.

- A. A SNAP recipient is not an ABAWD or is exempt from ABAWD requirements if the member is:
1. Exempt from work registration as specified in MS 1650.
 2. [Age 17 and under or age 65 and older. Changes in age that result in a change in ABAWD status are handled as outlined in MS 1750.
 3. Medically certified as physically or mentally unfit for employment.
 4. An adult household member living in a household with members under age 14, including the spouse of the member.
 5. Pregnant.
 6. Living in a waived county.]

Ensure that the ABAWD exemption policy is applied correctly by reviewing applicable questions on the system for the appropriate response and the Eligibility Determination Group (EDG). Do this prior to disposing of all case actions.

MS 2300

ABAWD TRACKING

(1)

All questions relating to ABAWD policy must be answered accurately and entered timely to monitor work requirement compliance. Statistics are accumulated based on system entries.

- A. ABAWD compliance is internally tracked based on responses to the member's information questions. Compliant and non-compliant months are tracked based on the data entered for each member. The member will not appear on tracking for any month in which the member is ineligible due to not meeting ABAWD work requirements, as the member will not be active.
- B. [ABAWD tracking codes are system-applied. They are as follows:
 - 1. DB Any Child Under 14;
 - 2. DC Certain Native American households;
 - 3. ER Exempt from Work Registration Requirements;
 - 4. PG Pregnant;
 - 5. HR Working 80 hours per month or more;
 - 6. VA Receiving VA unearned income;
 - 7. EM Subject to Time Limit;
 - 8. WV Living in a Waived County; and
 - 9. PM Prorated Month.

Note: For active cases with any child under 18 in the household prior to 10/25/2025, DC will remain applicable until recertification. Applications taken on or after 10/25/2025 will be subject to the new tracking codes.】

- C. An ABAWD tracking code is assigned for every SNAP recipient aged 18-65, regardless of the county of residence, each time the case is recalculated. These codes are collected when that month's benefits are issued. It may be necessary to change the tracking code because of information received at a later date.

When a recipient reports or you otherwise become aware of an ongoing change in ABAWD eligibility:

- 1. Enter the appropriate information for the member on the system. This ensures that the correct tracking code is assigned for future months.
 - 2. Determine when the ABAWD change took place.
 - a. Review the ABAWD tracking code already system-assigned for that time period.
 - b. The Field Services Supervisor or Case Manager manually corrects the tracking code as needed.
- D. After each issuance, a tracking code is accumulated for that benefit month. Non-compliant months can be viewed through "Individual Summary".
To change or add a non-compliant month, select "Manage Work Participation Months Tracker" and add the month.

MS 2350 CHANGES IN ABAWD STATUS (1)

A. Review all reported household changes for possible impact on ABAWD status. Changes that can alter ABAWD status are:

1. Beginning or ending pregnancy;
2. Gained or lost employment;
3. Beginning or ending participation or reducing the number of hours of participation in a SNAP E&T component:
4. Change in work registration exemption status;
5. **[**Change in age, 65 or older;
6. Change in member under age 14 moving in or out of the household;**]**
7. Move to an exempt or non-exempt county;
8. Temporary or permanent disability begins or ends; and
9. Reduction in the number of hours worked to less than 20 weekly.

Changes in ABAWD status must be acted on promptly once they become known to the Agency.

B. Process changes which affect ABAWD eligibility as follows:

1. At recertification, review ABAWD requirements with the recipient. Identify any changes in ABAWD status that have occurred since the last interview;
2. Enter known and reported changes in the SNAP case and update the appropriate questions for the member on the system. This ensures that the system assigns the correct tracking code for future months; and
3. Determine the date of the change.
 - a. Review the ABAWD's Work Participation Month Tracker screen to ensure system-assigned tracking codes are correct for the time period in question.
 - b. Change the tracking code for noncompliant or compliant months, as needed. Only the Field Services Supervisor or Case Manager can manually correct the tracking code.
 - c. Document the case record for review purposes.

C. ABAWD status codes **MUST** be corrected for the month the change occurred. Status changes can be made at any time for any month during the 36-month tracking period. Go to the Individual Summary page for the member and click on "Work Participation Month Tracker" to make needed corrections.

[Example: An ABAWD reports at the March recertification interview that a 13-year-old child moved into the household in February. February becomes a compliant month, and the member is exempt from ABAWD work requirements for as long as this situation exists, or until the child turns 14. Access the member's ABAWD months from the Individual Summary page and correct the member's tracking code for February.]

If an ABAWD reports an exemption or that they have met requirements, but the report is made untimely, do not terminate an already established claim. For example:

Example #1: Jack did not return his SNET-145 to verify E&T program participation in January for the month of December. A claim is established for the transportation payment that was issued. Jack comes into the office on February 15th and returns his SNET-145, which verifies he completed his required hours. DO NOT terminate the already established claim, as he did not verify his participation timely.

Example #2: Cathy received her 3rd non-compliant month in December, and a claim was established for January. Cathy came into the office on February 1st to reapply and verify that she began working on November 2nd and is working enough hours to meet her ABAWD requirement. DO NOT terminate the already established claim, as this report was made untimely.

- D. Change in the tracking code, which changes a month from a compliant month to a non-compliant month, may result in member ineligibility.

If the tracking code is the only change and the change does not affect ongoing eligibility, the case does not pend for adverse action. However, the case does pend for adverse action if an ABAWD becomes ineligible and there are less than 10 days left in the month.

[Example: At application in 9/24, a member is credited with being employed 20 hours per week. In 2/25 at the recertification interview, it was discovered that the member was fired in 12/24. They did not work at least 80 hours in 12/24 and did not otherwise meet ABAWD requirements. When the tracking codes for 12/24, 1/25, and 2/25 are corrected to reflect non-compliance, the member becomes ineligible for SNAP effective 3/25, unless otherwise exempt.]

MS 2355

RETURNING ABAWD

(1)

Returning ABAWDs are processed as follows:

- A. This involves ABAWDs who:
 - 1. Reapply or are added to a SNAP case;
 - 2. Already have 2 noncompliant (BA) months; and
 - 3. The application/member add month is the third BA.
- B. If you have this case situation, the member will be determined an eligible ABAWD for the application/member add month and removed effective the next administratively feasible month.

MS 2450 OUT OF STATE ABAWD (1)

Do the following for household members subject to ABAWD requirements if they received SNAP in another state:

- A. Contact the other state(s) concerning the member's ABAWD status. Any month in the last 36 months for which the individual received SNAP must be determined as a compliant, noncompliant, or bonus month as follows:
 - 1. Send form PAFS-28, Out-of-State Inquiry, or contact the agency by phone;
 - 2. Determine if the applicant received SNAP for any month in the last 36 months, and was not exempt from ABAWD requirements;
 - 3. Accept the other state's documentation. It is the responsibility of the other state to verify the member's ABAWD status; and
 - 4. Document the case record thoroughly.
- B. Update the ABAWD's months on the system to reflect the information provided by the out-of-state agency. Go to the Individual Summary page for the member and click on "Work Participation Month Tracker" to make updates.
- C. If the other state refuses to supply this information, contact NAB and provide the address and phone number of the out-of-state agency.
- D. Do not hold the application pending past the 30 day timeframe to verify noncompliant months. Assume compliance and correct the member's tracking report when verification is received from the out-of-state agency.

MS 2500 PROCEDURES FOR NON-EXEMPT ABAWD (1)

The following are the procedures for when an individual who is a non-exempt ABAWD applies for SNAP.

- A. [The individual must state whether they wish to volunteer to participate in E&T activities **at the time of application** and when adding additional members to the household.]
 - 1. Answer YES or NO to the volunteer question for each appropriate individual.
 - 2. Explain form FSET-101, SNAP Employment and Training Fact Sheet. The worker should also explain that the system generates a copy of this form and they will receive it via mail.
 - 3. [Explain the ABAWD requirements. If the individual agrees to participate in the E&T program, they will receive an appointment for an assessment with their local E&T Provider when the case is approved.
 - 4. Explain that individuals who participate in the E&T program are eligible for a transportation payment up to \$25 based on anticipated expenses. Client statement is accepted as verification of the amount. The transportation payment is issued by the E&T provider once the individual completes the E&T assessment and agrees to participate in the E&T program.
 - 5. Advise the individual that failure to comply with the ABAWD requirements will result in ineligibility.
- B. If the individual begins working 80 hours or more per month and the worker verifies the number of hours, the member will be exempt from ABAWD provisions. When doing this change, the ABAWD questions must be updated to show the exemption.

MS 2510 TRAINING SITE AGREEMENT PROCEDURES (1)

[Form FSET-241, Workfare Training Site Agreement, is an agreement between our agency and an agency agreeing to provide a training site for ABAWDS. The agreement lists the conditions and requirements that the training site agency must agree to, including maintaining time and attendance records daily on each Workfare participant. It is the career coach's responsibility to thoroughly discuss these conditions and requirements with the representative of the training site to ensure the site is meeting requirements. An FSET-241 is completed by a career coach to place a participant in a Workfare site.

- A. Complete a FSET-241 when:
 - 1. The placement is initially negotiated.
 - 2. The hours of required participation, end date of agreement, or training activities change.
 - 3. The agreement ends.
- B. Each FSET-241 must contain:
 - 1. The name and address of the training site.
 - 2. The length of the agreement and the number of required hours of participation.
 - 3. The participant's name, SSN, address and phone number.
 - 4. Training site agency name and address.
 - 5. Normal functions of training site agency.
 - 6. Name of participant's immediate supervisor.
 - 7. Agency hours.
 - 8. Beginning date of participation.
 - 9. Participant's activities.
 - 10. Signature of training site agency representative, participant and DCBS representative and date of agreement.
 - 11. If a Workfare contract is discontinued: the date of the discontinuance of the contract, the date the contract was signed, and the reason for discontinuance.
- C. Scan the original form into the electronic case file (ECF) and then give the original to the training site agency. Give a copy to the client.
- D. A FSET-241 MUST be in the ECF for every participant placed in Workfare.]

MS 2550 GOOD CAUSE DETERMINATION (1)

When an individual fails to comply with a work-related requirement, determine if the individual has good cause.

Good cause exists when circumstances beyond the individual's control prevent compliance. Good cause can only last 30 days. If good cause is expected to last less than 30 days, this short-term status must be re-evaluated at the end of 30 days. If after 30 days the individual states circumstances still exist that prevent them from complying, review the individual's work registration status for a possible exemption.

[Accept the individual's statement for verification unless questionable. Good cause circumstances include but are not limited to the following:

- A. Illness or incapacity of the individual;
- B. Illness of another household member, requiring the presence of the individual;
- C. A household emergency;
- D. Unavailability of transportation, with no other readily accessible alternative means of transportation;
- E. Inclement weather which prevents the participant from traveling; or
- F. Temporary incarceration or court appearance.]

When an ABAWD has good cause for failure to fulfill the required number of hours in a given month, that month is NOT considered a non-compliant (BA) month.

If an individual wishes to claim good cause, they will make this request on their participation activity report. After the request is entered by the E&T Provider, a task will generate to an E&T worker. If the E&T worker determines that good cause does exist, the decision is entered on the individual summary screen by selecting the good cause button. This information will then pass back to the E&T Provider through the interface to case management system from Worker Portal.

MS 2700

ABAWD NONCOMPLIANCE

(1)

- A. Non-compliant (BA) months accumulate when the member is NOT meeting ABAWD work requirements. Pro-rated months are not counted as a non-compliant month.
 - 1. ABAWDs who accumulate 3 BA months within a 36-month period are ineligible for future benefits unless the member complies or becomes exempt from ABAWD requirements. BA months do not have to be consecutive.
 - 2. The system tracks compliant and non-compliant months for all ABAWDs who are issued benefits. Manual tracking of these months is not required.
 - 3. At each issuance the system determines the number of BA months an ABAWD has at that particular issuance. The system recalculates cases on the first workday of the issuance month. ABAWDS who are identified as having accumulated 3 BA months are generated a notice of ineligibility.
- B. ABAWDs accumulating 3 BA months are:
 - 1. Ineligible household members;
 - 2. **Removed from the SNAP Eligibility Determination Group (EDG) effective the following month or discontinued if there are no remaining eligible household members;**
 - 3. Included in income and resource consideration of the remaining household member's eligibility; income of ineligible ABAWDS is to be pro-rated; deductions are to be pro-rated IF the ineligible ABAWD is billed or responsible for paying the expense; and**]**
 - 4. Mailed a notice of ineligibility.

MS 2750 ABAWD BONUS MONTHS (1)

[ABAWD BONUS months are 3 additional months of eligibility granted to ABAWD individuals with 3 noncompliant months, who regained eligibility by working 80 hours in 30 days (paid or unpaid), and reported they are no longer fulfilling the ABAWD work requirement. The individual does not need to request these BONUS months as the months are issued immediately after the ABAWD individual first reports they are no longer meeting the ABAWD work requirement.**]**

- A. BONUS months are ALWAYS consecutive and begin the date the change is reported to the Agency.
- B. ABAWD requirements are not applied to the member during BONUS months. BONUS months are counted as compliant months. However, all other SNAP eligibility criteria apply.
- C. Once BONUS months have expired, the member must again meet ABAWD requirements to maintain eligibility, unless otherwise exempt.
- D. BONUS months are given only once in any 36-month period.

[Example: An ABAWD is approved for SNAP from 3/22 through 2/23. The ABAWD does not complete any work activity and accumulates 3 noncompliant months. Benefits are terminated effective 6/22. The individual worked 80 hours in 7/22, reapplied and was approved for benefits ongoing. On 9/10/22, he reports he was laid off. He is eligible for 3 consecutive BONUS months (10/22, 11/22, and 12/22- 9/22 is a prorated month thus a bonus month does not apply) of SNAP with or without meeting ABAWD requirements. Effective 1/1/23 the member must again meet ABAWD requirements or be ineligible for SNAP.

- E. If an individual is due to receive bonus months at the same time a disqualification of any type is being imposed, the individual will lose any months that a disqualification applies based on the disqualification periods.

Example: Individual is disqualified for 2 months, they could receive benefits for their third month. If the disqualification is for 4 months, they would be ineligible to receive any of the three additional months. An individual cannot receive the three consecutive additional months of benefits more than once in a 36-month period. After the disqualification is served, the individual could reapply for SNAP and if otherwise eligible and following the work program rules could receive benefits.

- F. Supervisors, Case Managers, and other designated staff enter BONUS months into worker portal.**]**

MS 3050 EMPLOYMENT AND TRAINING PROGRAM OVERVIEW (1)

【The Employment and Training (E&T) Program is an opportunity for SNAP recipients aged 16 to 64 to participate in allowable E&T activities. This program is offered to SNAP recipients statewide and provides opportunities for education and training activities to increase participants' chances of finding employment and self-sufficiency. Participating in E&T can also be an option for an ABAWD to meet their work requirement.】

After the SNAP recipient completes the screening and is deemed a good fit for E&T, they can choose to participate in the program. Upon disposition, a referral is sent to the local E&T Provider. The E&T Provider will reach out by mail, phone, text, or email to conduct an E&T assessment. Once the assessment is complete, the participant is referred/placed into an approved E&T component or referred to an approved E&T partner for services. Please refer to MS 3100 for the approved components.

MS 3100 Employment & Training Program Components (1)

[Employment & Training (E&T) Program approved components help in reaching employment goals and are described in detail below.]

- A. **Employment Readiness Training:** Intensive programs that include skill assessment and educational remediation services in order to prepare individuals for the workforce and employment.
- B. **Basic Education:** Based on the intake assessment and individual goals, individuals may be referred to basic education activities that include adult basic and/or foundational skills instruction necessary for the attainment of a secondary school diploma or equivalent in order to transition to post-secondary education and training and obtain employment.
- C. **Integrated Education and Training (IET):** IET provides adult education and literacy activities in conjunction with training for a specific occupation.
- D. **[Vocational Education:** This component builds skills that lead to full-time employment. The nature of the training course determines the length of participation. Please see the following considerations when using vocational education for E&T purposes:
 - 1. To qualify, students attending Kentucky Community and Technical College System (KCTCS) colleges must be enrolled in a program that cannot be transferred to a 4-year degree program.
 - 2. Participation in a vocational school must be a minimum of 20 hours per week. If the ABAWD does not complete 20 hours per week they are not in compliance. However, if the ABAWD is assigned a course for less than 20 hours, the ABAWD can participate in another component to make up the difference. The vocational education component can last up to 24 months with reviews every 6 months.
 - 3. ABAWDs who select the vocational education component must participate in another component until they actually begin classes. Once this component is completed, the ABAWD must again participate in another component, unless otherwise exempt or meeting ABAWD requirements.
 - 4. The E&T Provider will make a referral to the vocational school in order for the participant to apply for enrollment as well as financial aid.
 - 5. Vocational Education placement procedures are handled by E&T Provider staff.
- E. **Work Experience:** Planned, structured learning experiences that take place in a workplace for a defined period of time. The work experience may be paid or unpaid and may occur in either the private for-profit or the public sector. Work experience can either be a work activity or a work-based learning program.]

F. **Workfare:** This component is used as a last resort. The goal of this component is to assist in a participant's transition from unpaid to paid employment while providing on the job experience for participants. Participation is required on a year-round basis to meet ABAWD provisions. Placements are made with public and private non-profit agencies. Form FSET-241, Workfare Training Site Agreement, is completed when a participant is placed at a workfare site.

1. Workfare participants do not receive wages. The number of hours participants are required to work are determined by the value of their SNAP allotment.
2. Each ABAWD is responsible for earning his/her own share of the SNAP allotment.
3. The minimum monthly number of hours that each Workfare participant is required to volunteer shall be determined by:
 - a. Finding the number of hours required for the household based on the allotment chart below; and
 - b. Dividing the household's hour requirement by the number of ABAWDs subject to the work requirement.

PRO-RATA SHARE OF ALLOTMENT			NUMBER OF HOURS REQUIRED TO WORK PER MONTH
\$0	through	49	5 hours;
\$50	through	99	10 hours;
\$100	through	149	15 hours;
\$150	through	199	25 hours;
\$200	through	249	30 hours;
\$250	through	299	35 hours;
\$300	through	349	40 hours;
\$350	through	399	50 hours;
\$400	through	449	55 hours;
\$450	through	499	65 hours;
\$500	through	549	70 hours;
\$550	through	599	75 hours;
\$600	through	649	85 hours;

\$650	through	699	90 hours;
\$700	through	749	100 hours;
\$750	through	799	105 hours; and
\$800		and up	110 hours

- c. ABAWDS who are subject to the time limit will have their workfare goal hours displayed on the EDG Summary screen. These hours will also populate on their activity report.
5. The Workfare component lasts for 12 months unless the ABAWD enters another component, becomes otherwise exempt from ABAWD requirements, or meets ABAWD requirements in another way. At the end of the 12-month period, form FSET-241 should be reviewed with the Workfare site agency to determine if the agency wants to continue to provide a placement for the participant. If the placement will continue, a new form FSET-241 must be completed.
 6. The Department for Community Based Services (DCBS) carries accident insurance on Workfare participants. Refer to Volume IIIA, MS 4300.
 7. DCBS does not pay for a background check on Workfare participants; however, the fee can be paid through E&T funding through the E&T Providers as an expense.

MS 3150

JOB RETENTION SERVICES

(1)

[Individuals who were employed and/or participated in training services through the E&T Program, who have secured employment and are no longer participating in an E&T component are eligible for job retention services (JRS). Individuals are eligible to receive JRS if they were employed and participating in E&T at the time their SNAP case discontinues due to income. JRS includes case management services from the E&T provider and transportation payments of up to \$25 for 3 consecutive months once the SNAP case is discontinued.

1. Job retention services are provided for a minimum of 30 days up to 90 days, even if the individual is no longer receiving SNAP benefits.
2. These individuals are tracked as E&T participants even if they are not receiving SNAP benefits.
3. Individuals who volunteer for the E&T program but stop participating are exited from the program after two months of non-participation and are no longer eligible for job retention services.]

MS 3400

REPORTING CHANGES

(1)

【Changes that impact E&T participation MUST be reported.

The following changes in E&T participation status are automatically processed by the system when action is taken on a SNAP case.

1. Participant becomes ineligible;
2. Mandatory registrant becomes exempt; and
3. Address change.】

MS 3500 TRANSPORTATION PAYMENT PROCEDURES (1)

【Individuals who are participating in the SNAP E&T program are eligible to receive a monthly transportation assistance payment up to \$25. Transportation payments are paid once the SNAP recipient has been determined to be a good fit for E&T, agreed to participate, and completes the E&T assessment with the E&T Provider. The individual must agree to continue in the E&T program. The E&T provider will request the transportation payments. Once the request is received, the system will auto-issue transportation payments by mail with a paper check, it is important to have a current valid mailing address. After the assessment, the individual will need to complete the SNET 145 to request ongoing transportation assistance along with form to verify monthly hours.

Client statement is accepted as verification of transportation expenses. The payment is entered through Benefit Management and will not exceed \$25 per month regardless of the amount the E&T participant spends. A warning banner will display when a worker attempts to issue a transportation check for more than \$25.

Transportation payments are authorized as follows:

1. SNAP participants who complete the assessment and agree to participate in the E&T program ongoing are eligible for up to \$25 transportation payment based on anticipated expenses.
2. Active E&T participants are eligible to continue to receive ongoing transportation payments up to \$25 for each month they participate and provide documentation.】

NOTE: It is imperative that workers ask individuals who identify as being homeless to provide an actual mailing address rather than listing a mailing address to which mail cannot reasonably be delivered. Workers must also ensure the mailing address is updated for the individual on Worker Portal.

MS 3600 AUTHORIZING TRANSPORTATION PAYMENTS (1)

[Transportation payments are issued as long as the member is in compliance and 30 days has to lapse between payments.]

MS 3900

CURING NONCOMPLIANCE

(1)

[An individual who fails to cooperate with ABAWD requirements and loses SNAP eligibility, must comply, unless the individual becomes exempt from work registration during that period.

- A.** Once the individual notifies DCBS that they want to be added back into a case or has re-applied for SNAP, the individual must comply for 30 days unless they become exempt from work registration. This has to occur before eligibility can be determined.]

NOTE: If the individual states they are now working enough hours to make them exempt from ABAWD requirements, regaining eligibility is based on verified **anticipated** hours. The individual is not required to have worked for 30 days prior to regaining eligibility.

1. If the individual **is** exempt from or complying with ABAWD requirements consider the noncompliance cured. Process an application if SNAP is inactive. If SNAP is active, add the individual to the case.
2. If the individual **is not** exempt from ABAWD requirements and there is active SNAP take the following action:
 - a. Manually issue form FS-105, Notice of Eligibility or Ineligibility, explaining that the individual is ineligible as they have not complied with ABAWD work requirements.
 - b. Explain to the individual what the requirements are and that they need to comply for 30 days to be eligible for benefits.
3. If the individual **is not** exempt from ABAWD requirements and SNAP is inactive, take the following action:
 - a. Start an application on the system;
 - b. If the ABAWD individual is the only household member, explain to the individual that the SNAP application is being denied because they have to comply with ABAWD work requirements BEFORE they will be approved again. If there are other household members, explain that the application will approve if otherwise eligible without the ABAWD individual until they comply.
 - c. Enter comments detailing that the individual came in to apply for SNAP and as the ABAWD noncompliance hasn't been cured yet, the application is being denied or the individual is being denied; this has been explained and the ABAWD individual understands that they must comply for 30 days before an application can be approved or the individual can be added back; and it has been explained what options the ABAWD has to cure noncompliance and must verify after the 30 days.

- d. When the ABAWD individual completes the required activity, and the noncompliance has been cured, they may be eligible again assuming they meet all other eligibility requirements.
 4. If the ABAWD individual fails to cure the noncompliance, the individual remains ineligible.
- B. If the individual becomes exempt from work registration during noncompliance, the procedures are as follows:
1. If SNAP is active, process a member add and change the individual's information screens to reflect the exemption;
 2. If SNAP is inactive, process an application; and
 3. Document comments.
- C. If the individual becomes exempt after noncompliance but before the first effective month, the procedures are as follows:
1. Change the individual's information screens to reflect the exemption;
 2. Check the Work Participation Month Tracker on the Individual Summary and correct if necessary; and
 3. Document comments.

[NOTE: If an individual who is currently ineligible due to non-compliance reapplies and is alleging they are unable to work, take the application and pend the case for verification of incapacity/disability.]

MS 4205 VOLUNTARY QUIT/REDUCTION OF WORK HOURS IDENTIFICATION (1)

At application, recertification or case change when the worker becomes aware of a loss of employment, determine if the member subject to work registration quit a job. For applications, look back 30 days from the date of application. For active cases, review for job quits anytime during receipt of benefits.

Voluntary quit does not apply if the member is exempt from work registration requirements. The SNAP household is allowed to change the work registration exemption for who is responsible for the care of a dependent child under age 6 at any time.

Consider reduction of work hours to less than the equivalent of the Federal minimum wage multiplied by 30 hours per week, the same as voluntary quit. Use the same good cause criteria for both.

- A. To be considered a voluntary quit/reduction of work hours, the employment must meet the following criteria:
 - 1. Involve 30 hours or more per week or provide earnings equivalent to the Federal minimum wage multiplied by 30 hours per week; and
 - 2. The quit was without good cause. Refer to [MS 4250](#) for good cause criteria.
- B. Consider employees of a Federal, State or local government who participate in a strike against such government and are dismissed from the job due to participation in the strike, to have voluntarily quit a job without good cause.
- C. Consider contract employees, who choose not to renew their contract with terms comparable to those of a previous contract, although it is offered, to have voluntarily quit a job without good cause.
- D. Once a voluntary quit/reduction of work hours is verified, the work related disqualification is imposed based on system entries.
- E. Primary Wage Earner designation has no bearing on identification of voluntary quit/reduction of work hours.
- F. Do NOT consider the following changes in employment status as voluntary quit:
 - 1. Termination of a self-employment enterprise;
 - 2. Resignation of a job at the request of the employer; or
 - 3. Loss of a job through no fault of their own if the job was obtained to cure a previous voluntary quit.

- G. Consider refusal to provide sufficient information to allow a determination of employment status as non-compliance with a work requirement and a disqualification is imposed for that member.
1. If the statements or information concerning a member's loss of employment or reduction in work hours is questionable, request verification of the questionable information.
 2. Assist the member in obtaining the requested information if needed.
 3. [If all the information has been received to determine the household's ongoing eligibility except the questionable information concerning loss of employment or reduction of work hours, and that member is required to register for work, approve the application, recertification, etc., but identify that the member voluntary quit the job on the Earned Income Details screen and the system will automatically apply a disqualification for the member.]
 4. If the household provides the information after the disqualification has been imposed, and this information indicates that a voluntary quit/reduction of work hours is not appropriate, delete the disqualification in this situation. The Supervisor or Principal worker can delete the disqualification. Add the member back to the case the first effective month, and provide a supplement, if appropriate.
 5. While serving an appropriate disqualification, if the member becomes exempt from work registration requirements, the disqualification period does not have to be served, and is considered cured. The member is added back to the case the first effective month. Supplements are not appropriate if the member ends the disqualification period by becoming exempt from work registration requirements in the month of the reported change.
- H. Do not delay benefits beyond the normal processing timeframe pending determination of a voluntary quit.
- I. Once a voluntary quit/reduction of work hours disqualification has been imposed, the member must serve the disqualification period, unless the member becomes exempt work registration. After the member has served the disqualification period, he/she DOES NOT have to comply before eligibility can be redetermined.

(1)

A. Good cause for leaving employment or reduction of work hours includes:

1. Discrimination by an employer based on age, race, sex, disability, religious beliefs, national origin, or political beliefs;
2. Work demands or conditions that render continued employment unreasonable, such as working without being paid on schedule;
3. Acceptance of employment or enrollment of at least half-time in any recognized school, training program, or institution of higher education, that requires the member to leave employment or reduce work hours;
4. [Resignations by persons under the age of 65, which are recognized by the employer as retirement;]
5. Leaving employment that becomes unsuitable after the acceptance of such employment. Refer to MS 4300 for further explanation.
6. Acceptance of a bona fide offer of employment of 30 hours per week or the equivalent of the Federal minimum wage multiplied by 30 hours per week, and because of circumstances beyond the control of the member, the employment either does not materialize or results in employment of less than 30 hours per a week or earnings less than the Federal minimum wage multiplied by 30 hours per week;
7. Leaving a job in connection with patterns of employment in which workers frequently move from one employer to another, such as migrant farm labor or construction work. Circumstances may include applying for SNAP between jobs, and work may not yet be available at the new job site. Although employment at the new site has not begun, quitting the previous employment is considered good cause if it is part of the pattern of employment;
8. Military personnel who choose not to reenlist; or
9. [Leaving a paid position of employment pursuant to provisions under the Family and Medical Leave Act (FMLA) of 1993. FMLA must be verified by the employer, or a certified physician, or practitioner.]

FMLA requires covered employers to grant up to twelve weeks of unpaid, job-protected leave to "eligible" employees for certain family and medical reasons. Upon return from FMLA leave, employees must be restored to their original or equivalent positions with equivalent pay, benefits, and other employment terms.

- 10.Lack of adequate childcare for children between ages 6 and 12.

B. Good cause may also include some circumstances as listed in MS 2550.

C. Verify good cause for voluntary quit, if questionable. The primary responsibility for providing verification rests with the household. Offer assistance if the member indicates it is impossible to obtain verification. When documentary evidence cannot be obtained, substitute a collateral contact.

1. Acceptable sources of verification include, but are not limited to:

- a. Previous employer;
- b. Employee association;
- c. Union representatives;
- d. Grievance committees; or
- e. Other organizations.

2. [If the household and the agency are unable to obtain the requested verification, but the quit resulted from circumstances that, for good reasons, cannot be obtained, client statement as a last resort can be entered as an acceptable verification source to ensure the household is not denied access to the program. Document the case for review purposes.]

MS 4300 EVALUATING ACCEPTABLE EMPLOYMENT (1)

A good cause reason for voluntary quit or reduction in work hours can be due to unsuitable employment conditions. Use the following criteria:

A. Consider employment unsuitable if the wage offered is less than the highest of the following:

1. The applicable Federal minimum wage;
2. The applicable State minimum wage; or
3. 80% of the Federal minimum wage if neither the Federal nor State minimum wage is applicable. The Federal or State minimum wage is not applicable when the following applies:
 - a. Federal minimum wage - The retail business has less than \$500,000.00 in sales annually;
 - b. State minimum wage - The retail business has less than \$95,000.00 in sales annually; or
 - c. Federal or State minimum wage - The member is employed as a domestic, live in companion, or has odd job income, etc.

B. Consider employment unsuitable if:

1. Offered on a piece-rate basis and the average hourly yield the employee can reasonably expect to earn is less than the applicable minimum wage;
2. The member is required to join, resign from or refrain from joining any legitimate labor organization as a condition of employment; or
3. Work offered is at a site subject to a strike or lockout at the time of the offer, unless the strike has been enjoined under Section 208 of the Labor Management Relations Act (Taft-Hartley Act) or Section 10 of the Railway Labor Act.

Eligible strikers are subject to regular work registration procedures. If the strike is enjoined under Section 208 of the Labor-Management Relations Act (Taft-Hartley Act) or if an injunction is issued under Section 10 of the Railway Labor Act and the striker refuses to return to work, the striker has failed to comply with the requirement of acceptance of suitable employment.

C. Consider employment unsuitable if the household member involved can demonstrate or the worker otherwise becomes aware that:

1. The degree of risk to health and safety is unreasonable;

2. The member is physically or mentally unfit to perform the employment. This must be documented by medical evidence or by reliable information from other sources;
3. The employment offered within the first 30 calendar days of registration is not in the member's major field of experience;
4. The distance from the member's home to the place of employment is unreasonable considering the expected wage and the time and cost of commuting;
5. Daily commuting time exceeds two hours per day, not including transporting a child to and from a child care facility;
6. The distance to the place of employment prohibits walking and neither public nor private transportation is available to transport the member to the job site; or
7. The working hours or nature of the employment interferes with the member's religious observances, convictions, or beliefs.

MS 4350 NONCOMPLIANCE WITH OTHER WORK PROGRAMS (1)

If a SNAP member fails to comply with another program's work requirements, a disqualification is imposed for the noncompliant SNAP member. The disqualification will be system imposed based on the action taken in the other program. The member must be in receipt of SNAP at the time the noncompliance occurred, for this to apply.

The other programs include, but are not limited to the following:

1. KWP (KTAP work requirement); and
2. UIB.

If noncompliance occurs, notification can be received by any of the following methods:

1. [System imposed disqualification; or
2. UIB verification including Program 4B, UIB worker contact or information provided by the member.

The types of disqualifications to impose are as follows:

1. Noncompliance with other PGRM (25 % reduction); or
 2. KWP/UIB Sanction/Refuse Job Offer (member removed).
- A. A disqualification is imposed for member's who are exempt work registration, other than for the receipt of KTAP.
- EXAMPLE: Mother, age 42 and one child age 4. Mother fails to comply with KWP in a KTAP case. A disqualification is imposed in the KTAP case, which imposes a 25 % reduction in the SNAP case.
- B. A disqualification is imposed for members who are exempt work registration, based solely on the receipt of KTAP.
- EXAMPLE: Mother, age 42 and one child age 14. Mother fails to comply with KWP in a KTAP case. A disqualification is imposed in the KTAP case, which imposes a disqualification in the SNAP case.
- C. A disqualification is imposed for members who are exempt work registration, based solely on a pending UIB application or the receipt of UIB.]
- EXAMPLE 1: Mother, age 42 and one child age 14. Mother is in receipt of UIB and fails to comply with job search required by UIB. This can be verified by Program 4B, UIB worker contact or information provided by the member.
- EXAMPLE 2: Mother, age 42 and one child age 14. Mother applies for UIB and is subsequently denied; the reason for denial is job quit, refusal to accept a job offer or noncompliance with UIB. This can be verified by Program 4B, UIB worker contact or information provided by the member.

[Members currently serving a disqualification due to noncompliance with another program must comply with the requirements of the other program, regardless of work registration exemption.

Once requirements of the other program are met, verification of compliance occurs by any of the following methods:

1. A system imposed action; or
2. UIB verification.

If the SNAP case is discontinued after the disqualification is imposed, the disqualification would still apply at reapplication if the KTAP noncompliance is still in effect.

Document comments concerning any disqualifications.]

MS 4450 IMPOSING WORK-RELATED DISQUALIFICATIONS (1)

A. Impose the appropriate work related disqualification once noncompliance is verified. Imposing a work related disqualification has the following effect on the member:

1. The disqualification begins the month the adverse notice is effective;
2. Only the member is disqualified, and the disqualification follows the member;
3. The member's income and resources continue to count toward the remaining household members; and
4. [A notice is generated to the household explaining the number of months disqualified, how it affects the benefits, the right to a hearing, and requirements to reapply once the disqualification period ends.

B. If the household requests a hearing after being disqualified, the member may request that benefits be continued. See Volume I, [MS 0490](#).]

If the Agency is affirmed as a result of the hearing, the disqualification is imposed prospectively (ongoing), and a claim is not filed for the months benefits were continued.

If the disqualification cannot be imposed prospectively, a claim is appropriate for benefits received while the hearing decision was pending. The reasons a disqualification would not be imposed prospectively may include the member's SNAP eligibility was not continued for other reasons, or the member may be exempt from work registration.

- C. An agency error claim exists if a disqualification is not imposed TIMELY due to the agency's delay and the member becomes exempt work registration prior to imposing the disqualification.
- D. Disqualifications are imposed regardless of the active or inactive status of the case or county. The member must have been in receipt of benefits at the time the noncompliance occurred to impose the disqualification.
- E. Separate work related disqualifications are NOT imposed simultaneously. Each disqualification must first be served and then cured, and eligibility reestablished before another disqualification can be imposed.
- F. Document comments regarding the circumstances of all work related disqualifications.

MS 4500 ENDING WORK-RELATED DISQUALIFICATIONS (1)

- A. [For the following work related disqualifications, the member must first serve the mandatory disqualification period and then establish compliance, prior to reestablishing eligibility, unless the member becomes exempt from work registration. To establish compliance, the member must agree to work register.
- B. For a voluntary quit/reduction of work hours disqualification, the member must first serve the mandatory disqualification period prior to reestablishing eligibility, unless the member becomes exempt from work registration. A disqualification does not require the member to comply prior to re-establishing eligibility. Once the disqualification period is served, the member can reapply or a member add can be completed.
- C. For a KWP or UIB disqualification, the member must comply with the KWP or UIB requirement which caused the SNAP disqualification, in order to establish compliance with the SNAP work requirements. The entire disqualification period does not have to be served once the member complies with the other program. Ensure the member is shown as having a UIB Claim pending to exempt the member from work registration.

The disqualification period must be served unless the member becomes exempt work registration. If the member becomes exempt for a reason other than complying with the other program, the disqualification still applies as we do not increase SNAP benefits due to a decrease in KTAP benefits that is caused by noncompliance.

- D. After the disqualification period is served the member can reapply for benefits or a member add can be completed. Add the member to an active case effective the month following compliance. Supplemental benefits are only issued for the month of CURE if the disqualification is not acted on timely or it is after cut-off. Supplementals are NOT issued if the member ended the disqualification by becoming exempt from work registration requirements.
- E. Except for voluntary quit/reduction of work hours disqualifications, if the member does not comply, the disqualification is not considered cured.

The member remains ineligible ongoing until compliance is established. Document comments concerning the member's status at any subsequent application, recertification, or member add.

- F. If the member is currently serving a work related disqualification, other than a KWP or UIB disqualification, and becomes exempt, do the following:
 - 1. Verify the exemption, if questionable;
 - 2. Cure the disqualification;
 - 3. Process an application or member add as appropriate.

- G. Discontinuance of the KTAP case cures the FS disqualification.
- H. The member is responsible for contacting the local office to reapply for benefits after the disqualification period ends.
- I. DO NOT DELETE THE DISQUALIFICATIONS, unless otherwise advised, even if the member becomes exempt work registration. Disqualifications remain on the system in order to track occurrences, regardless of the active or inactive status of the case or county.
- J. Document comments concerning actions taken on all work related disqualifications.]

Failure to comply with work requirements result in SNAP disqualification for the noncompliant member.

Work related disqualifications for noncompliance are for a specified time, depending on the occurrence. Once imposed appropriately disqualifications are NOT DELETED, unless otherwise advised. Disqualifications can limit a member's participation in a particular program or prevent the member from receiving benefits.

- A. Work-related disqualifications are tracked by the system for multiple occurrences.
- B. Disqualifications imposed based on system entries:
 - 1. [Fail/decline to Work Register; and
 - 2. Voluntary Quit/Reduced Hours, or refusal to provide sufficient information to allow a determination of employment status.

These disqualifications result in the member(s) ineligibility based on the occurrence. (Please refer to item D below).

- C. Disqualifications imposed based on system imposed information:

KWP/UIB Sanction/Refuse Job Offer- If the member is not complying with KWP, and is exempt from work registration ONLY because of KWP participation, a work related disqualification is imposed on the member. If the member is otherwise exempt from work registration, then a work related disqualification is not appropriate. In this situation, a non-compliance with other programs disqualification is imposed, as per Volume II, [MS 2370](#).

Failure to cooperate with program requirements of KTAP or UI will result in a 25% reduction in SNAP benefits as well as the member(s) ineligibility based on the occurrence. (Please refer to item D below).

- D. Penalties are as follows:

- 1. 1st violation = 2 months;
- 2. 2nd violation = 4 months; and
- 3. 3rd and subsequent violations = 6 months.

MS 4800 MOVE FROM COUNTY TO COUNTY (1)

A. [When a SNAP recipient moves from an inactive ABAWD county to an active ABAWD county, once the worker changes the address and runs eligibility, form FSET-101 will auto generate and an appointment for assessment will be auto scheduled.

B. When an ABAWD moves from an active ABAWD county to an inactive ABAWD county, once the address/county is changed E&T activity will stop.

If it is later discovered, after the address/county code is changed, that transportation had not been issued, forward the payment information to the Nutrition Assistance Branch for manual processing. This should be a rare occurrence.

If the member is ineligible due to receipt of 3 non-compliant (BA) months, process an application or member add, as appropriate.

Moving to an inactive ABAWD county does not exempt the member from work registration requirements or prevent non-compliance.】

MS 4850 [REINSTATING AFTER ERRONEOUS ABAWD DISQUALIFICATION] (1)

If a disqualification has been imposed erroneously, delete the disqualification, reinstate the case and/or add the member and restore benefits as necessary. A reapplication or member add must be completed on the disqualified member using previous verification and the old work registration date. Document comments for review purposes.